

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Justin Huang	Team: Squad #10	CCRB Case #: 202403115	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Wednesday, 03/20/2024 11:45 PM, Thursday, 03/21/2024 12:30 AM	Location of Incident: 146th Street and Rockaway Parkway, § 87(2)(b)	18 Mo. SOL 9/20/2025	Precinct: 113
Date/Time CV Reported Fri, 03/29/2024 12:41 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 03/29/2024 12:41 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Stanley Joseph	15154	977207	113 PCT
2. PO Tristian Ozoria	15329	977313	113 PCT
3. SGT Denis Gamez	02198	949000	113 PCT
4. PO Alan Acevedo	20541	973197	113 PCT
5. PO George Sprague	11922	966352	113 PCT
6. PO Keith Donahue	25492	947740	113 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Daniel Barreto	02767	939904	113 PCT
2. PO Alexander Perez	07818	949468	113 PCT
3. PO Stefano Crociata	25491	971024	113 PCT
4. SGT Maurice Hogans	04571	938671	113 PCT
5. PO Jose Garnica	25756	977160	113 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Denis Gamez	Abuse: At 146th Street and Rockaway Parkway in Queens, Sergeant Denis Gamez failed to activate his body-worn camera.	A . Substantiated
B . SGT Denis Gamez	Abuse: At 146th Street and Rockaway Parkway in Queens, Sergeant Denis Gamez stopped the vehicle in which § 87(2)(b) was an occupant.	B . Within NYPD Guidelines
C . SGT Denis Gamez	Abuse: At § 87(2)(b) in Queens, Sergeant Denis Gamez stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	C . Within NYPD Guidelines
D . PO Alan Acevedo	Abuse: At § 87(2)(b) in Queens, Police Officer Alan Acevedo interfered with § 87(2)(b) use of a recording device.	D . Within NYPD Guidelines
E . SGT Denis Gamez	Abuse: At § 87(2)(b) in Queens, Sergeant Denis Gamez frisked § 87(2)(b)	E . Substantiated
F . PO Stanley Joseph	Abuse: At § 87(2)(b) in Queens, Police Officer Stanley Joseph searched § 87(2)(b)	F . Unable to Determine

Officer(s)	Allegation	Investigator Recommendation
G . PO Stanley Joseph	Abuse: At § 87(2)(b) in Queens, Police Officer Stanley Joseph frisked § 87(2)(b)	G . Unable to Determine
H . PO Tristian Ozoria	Abuse: At § 87(2)(b) in Queens, Police Officer Tristian Ozoria frisked § 87(2)(b)	H . Unable to Determine
I . PO George Sprague	Abuse: At § 87(2)(b) in Queens, Police Officer George Sprague threatened § 87(2)(b) with the use of force.	I . Within NYPD Guidelines
J . PO Tristian Ozoria	Abuse: At § 87(2)(b) in Queens, Police Officer Tristian Ozoria failed to provide § 87(2)(b) with a business card.	J . Substantiated
K . PO Stanley Joseph	Force: At § 87(2)(b) in Queens, Police Officer Stanley Joseph used physical force against § 87(2)(b)	K . Within NYPD Guidelines
L . PO Keith Donahue	Force: At § 87(2)(b) in Queens, Police Officer Keith Donahue used physical force against § 87(2)(b)	L . Unable to Determine
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]
§ 87(2)(g), § 87(4-b)	[REDACTED]	[REDACTED]

Case Summary

On March 29, 2024, § 87(2)(b) a reporting non-witness filed this complaint on behalf of her sons, § 87(2)(b) and § 87(2)(b) and their friend, § 87(2)(b) with the CCRB by phone.

On March 20, 2024, at approximately 11:45 p.m., § 87(2)(b) was driving with § 87(2)(b) and § 87(2)(b) when they observed another driver, § 87(2)(b) fleeing an accident. § 87(2)(b) pursued § 87(2)(b) and flagged down Sergeant Denis Gamez and Police Officers Stanley Joseph, Tristan Ozoria and Alan Acevedo, all from the 113th Precinct at the intersection of 146th Street and Rockaway Parkway in Queens. Sgt. Gamez failed to activate his body-worn camera (BWC) (**Allegation A: Abuse of Authority – Improper use of body-worn camera, Substantiated**). Sgt. Gamez stopped § 87(2)(b) vehicle (**Allegation B: Abuse of Authority – Vehicle Stop, Within NYPD Guidelines**).

On March 21, 2024, at approximately 12:30 a.m., at § 87(2)(b) in Queens Sgt. Gamez stopped § 87(2)(b) vehicle (**Allegation C: Abuse of Authority – Vehicle Stop, Within NYPD Guidelines**). PO Acevedo interfered with § 87(2)(b) use of a recording device (**Allegation D: Abuse of Authority – Interference with Recording, Within NYPD Guidelines**). Sergeant Daniel Barreto and Police Officers George Sprague, Alexander Perez, Stefano Crociata and Keith Donahue, all from the 113th Precinct, responded. Sgt. Gamez frisked § 87(2)(b) (**Allegation E: Abuse of Authority – Frisk, Substantiated**). PO Joseph searched and frisked § 87(2)(b) while PO Ozoria also frisked § 87(2)(b) (**Allegation F: Abuse of Authority – Search of Person, Unable to Determine**) (**Allegation G: Abuse of Authority – Frisk, Unable to Determine; Allegation H: Abuse of Authority – Frisk, Unable to Determine**). PO Sprague threatened § 87(2)(b) with the use of force (**Allegation I: Abuse of Authority – Threat of Force, Within NYPD Guidelines**). PO Ozoria failed to provide § 87(2)(b) with a business card (**Allegation J: Abuse of Authority – Failure to provide RTKA Card, Substantiated**). PO Joseph and PO Donahue used physical force against § 87(2)(b) (**Allegation K: Force – Physical Force, Within NYPD Guidelines; Allegation L: Force – Physical Force, Unable to Determine**) § 87(2)(b)

§ 87(2)(b) was arrested for robbery in the third degree, petit larceny, unlawful imprisonment, and harassment in the second degree (**BR 01**). No additional arrests or summonses resulted from this incident.

The CCRB received BWC footage from the NYPD that captured portions of the incident (**BR 23-31**). Relevant footage will be discussed below.

Findings and Recommendations

Allegation (A) Abuse of Authority: At 146th Street and Rockaway Parkway in Queens, Sergeant Denis Gamez failed to activate his body-worn camera.

Allegation (B) Abuse of Authority: At 146th Street and Rockaway Parkway in Queens, Sergeant Denis Gamez stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation (C) Abuse of Authority: At § 87(2)(b) in Queens, Sergeant Denis Gamez stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation (D) Abuse of Authority: At § 87(2)(b) in Queens, Police Officer Alan Acevedo interfered with § 87(2)(b) use of a recording device.

§ 87(2)(b) (**BR 02**) stated that he, § 87(2)(b) and § 87(2)(b) were driving in a black Honda sedan with license plate #§ 87(2)(b) when they saw § 87(2)(b) hit a parked vehicle with his truck. At the corner of 146th Street and Rockaway Boulevard, § 87(2)(b) stopped in front of § 87(2)(b) to prevent him from fleeing while § 87(2)(b) flagged down a police vehicle. § 87(2)(b) and § 87(2)(b) spoke with Sgt. Gamez, and, § 87(2)(b) tried to explain the hit-and-run, while § 87(2)(b) spoke to Sgt. Gamez in Spanish. Sgt. Gamez told § 87(2)(b) that he would inspect the accident

and drove up 147th Street. § 87(2)(b) and § 87(2)(b) waited inside their respective vehicles for Sgt. Gamez to return. During this time, § 87(2)(b) noticed PO Joseph and PO Ozoria approach them from the sidewalk. § 87(2)(b) told them about § 87(2)(b) and the hit-and-run. The officers approached § 87(2)(b) vehicle.

When Sgt. Gamez returned, he spoke with § 87(2)(b) thought that his presence was no longer necessary, so he left and parked in front of his house at § 87(2)(b). § 87(2)(b) left and § 87(2)(b) and § 87(2)(b) remained inside the vehicle. Before § 87(2)(b) could exit, he saw approximately ten and heard Sgt. Gamez tell him to get out of the car. § 87(2)(b) used his cell phone to record the officers before exiting. PO Acevedo grabbed and removed § 87(2)(b) cell phone before officers handcuffed him and § 87(2)(b). § 87(2)(b) and § 87(2)(b) did not provide statements to the investigation. Absent any contact or pedigree information, the investigation was unable to contact § 87(2)(b).

Sgt. Gamez (BR 04, 37) stated that § 87(2)(b) who was standing in front of his truck with § 87(2)(b) flagged him down. § 87(2)(b) told him that § 87(2)(b) fled an accident and provided the accident location. Sgt. Gamez asked § 87(2)(b) to provide his license and § 87(2)(b) complied. Sgt. Gamez drove to the accident location and contacted PO Joseph and PO Ozoria with instructions to monitor § 87(2)(b) and § 87(2)(b). Sgt. Gamez then drove back to § 87(2)(b) and § 87(2)(b). Sgt. Gamez did not activate his BWC because he did not think a crime had been committed, and that only an exchange of information was needed for the vehicle accident.

Upon returning to the initial location, § 87(2)(b) explained to Sgt. Gamez that § 87(2)(b) had pulled in front of him, approached him with another individual, and opened § 87(2)(b) truck door. When § 87(2)(b) tried to exit, § 87(2)(b) held him against his seat, said that § 87(2)(b) hit their friend's car, demanded money in restitution, and told him to drive to an ATM. The other individual looked through the center console and removed \$100.00, at which time § 87(2)(b) pushed past § 87(2)(b) and flagged down Sgt. Gamez.

As § 87(2)(b) had left the location, Sgt. Gamez, PO Acevedo, PO Ozoria, and PO Joseph conducted a canvas for approximately five to 10 minutes of the surrounding area until they found § 87(2)(b) vehicle parked on the street. Sgt. Gamez issued several commands for § 87(2)(b) to exit the vehicle, which he did.

PO Ozoria and PO Joseph (BR 05, 06) provided statements generally consistent with Sgt. Gamez's. After locating § 87(2)(b) car, PO Ozoria noticed § 87(2)(b) holding his cell phone. PO Joseph did not mention anything about § 87(2)(b) cell phone usage or whether he was recording.

BWC footage from PO Ozoria and PO Joseph (BR 23, 24) shows that at 00:46 in both videos, PO Ozoria and PO Joseph arrive at the intersection of 146th Street and Rockaway Boulevard, where they see § 87(2)(b) black sedan parked in front of § 87(2)(b) truck. One of the three occupants in the black sedan points to the pickup truck. At 01:39 in PO Joseph's video, PO Ozoria asks § 87(2)(b) what happened. § 87(2)(b) explains (in Spanish) that he was driving a few blocks away, looking for an exit onto the main road before another car struck him. § 87(2)(b) drove away from the scene of the collision and parked a block away. Sgt. Gamez then arrives at the intersection in a marked vehicle and tells PO Ozoria and PO Joseph via loudspeaker to grab § 87(2)(b) registration and insurance, as Sgt. Gamez already has § 87(2)(b) license.

BWC footage from Sgt. Gamez (BR 25) does not capture the initial encounter at the intersection of 146th Street and Rockaway Parkway nor his subsequent conversation with § 87(2)(b). Per Sgt. Gamez's only BWC activation, officers locate § 87(2)(b) vehicle at 12:23AM, approximately 13 minutes after the initial contact at the intersection of 146th Street and Rockaway Parkway. At approximately 01:00, Sgt. Gamez, PO Ozoria, PO Joseph, and PO Acevedo approach § 87(2)(b) vehicle. PO Gamez asks § 87(2)(b) and § 87(2)(b) to exit the vehicle while opening the driver's side door. § 87(2)(b) turns on his cell phone camera. At 01:27, § 87(2)(b) steps out of the vehicle and Sgt. Gamez handcuffs him. § 87(2)(b) says that an officer removed his

cell phone from his hand.

BWC footage from PO Acevedo (**BR 26**) is consistent with Sgt. Gamez's. At 01:25, PO Acevedo removes § 87(2)(b) cell phone from his hand before he and Sgt. Gamez handcuff him.

PO Joseph (**BR 06**) and PO Ozoria's (**BR 05**) statements were consistent with Sgt. Gamez's and their BWC.

§ 87(2)(b) was arrested for robbery in the third degree, petit larceny, unlawful imprisonment, and harassment in the second degree (**BR 01**). The narrative section is consistent with Sgt. Gamez's account of his conversation with § 87(2)(b).

The stop report (**BR 03**) was generally consistent with the arrest report and noted that § 87(2)(b) drove a black 2022 Honda sedan with license plate #§ 87(2)(b) and that the officers located the vehicle, with § 87(2)(b) and § 87(2)(b) sitting inside, after canvassing the area. The officers approached the vehicle, removed both § 87(2)(b) and § 87(2)(b) from the vehicle, and placed them in handcuffs due to the violent nature of the crime and for officer safety.

People v. Debour, 40 N.Y. 2d 210, 233 (1976) (**BR 07**) states that "where a police officer entertains a reasonable suspicion that a particular person has committed, is committing or is about to commit a felony or misdemeanor, New York Criminal Procedure Law authorizes a forcible stop and detention of that person."

Section 600 of Article 22 of New York Vehicle and Traffic Law (**BR 39**) states that "any person operating a motor vehicle who, knowing, or having cause to know that damage has been caused to [another person's property]" must provide their name, license, and insurance information to the damaged party before leaving the scene of the accident. It further states that, when present, police officers are responsible for requesting and exchanging any contact and insurance information from the parties involved in the accident in order to prepare an accident report. A violation of these terms constitutes a traffic infraction punishable by fine and imprisonment.

People v. Peterson, 110 A.D. 3d 1103 (**BR 08**) found that in order to lawfully stop and detain a particular person, police officers must have reasonable suspicion that a particular person has committed, is committing or is about to commit a felony or misdemeanor. When obtaining reasonable suspicion, officers must consider similarities in provided descriptions of the defendant, as well as their temporal and spatial proximity to the incident of the crime.

Patrol Guide procedure 212-123 (**BR 34**) states that officers must activate their BWC prior to engaging in any police action. Police action includes calls for service, addressing quality of life conditions, handling pick-up assignments, and any self-initiated investigative or enforcement actions such as witness canvasses, vehicle stops, and investigative encounters. In addition, officers must record any interactions that escalate to become adversarial or may hold evidentiary value.

Administrative Guide 304-21 (**BR 09**) states that the right to observe and/or record police action can be limited for reasons such as the safety of officers, or other members of the public, or when a violation of law is committed by the individual(s) who are observing/recording."

It was undisputed that Sgt. Gamez was called to assist § 87(2)(b) and § 87(2)(b) in regard to an alleged motor vehicle accident, that Sgt. Gamez went to the accident location to investigate, that he subsequently interviewed § 87(2)(b) in regard, and that Sgt. Gamez failed to activate his BWC for this portion of the incident. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b) It is therefore recommended that **Allegation A** be **Substantiated**.

It is undisputed that the individuals in § 87(2)(b) car identified § 87(2)(b) as being involved in a vehicle accident and driving away from the scene. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegation B** be closed as **Within NYPD Guidelines**.

Despite the lack of BWC footage documenting the beginning of the incident, all officer statements, § 87(2)(b) arrest report, and the stop report are consistent with § 87(2)(b) account of the robbery. In addition, § 87(2)(b) had identified the individuals driving the black

sedan as the perpetrators, and the officers all observed the black sedan parked in front of § 87(2)(b) before it drove away. Furthermore, the officers were able to locate § 87(2)(b) vehicle § 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **Within NYPD Guidelines**.

§ 87(2)(g) It is therefore recommended that **Allegation D** be closed as **Within NYPD Guidelines**.

Allegation (E) Abuse of Authority: At § 87(2)(b) in Queens, Sergeant Denis Gamez frisked § 87(2)(b)

Allegation (F) Abuse of Authority: At § 87(2)(b) in Queens, Police Officer Stanley Joseph searched § 87(2)(b)

Allegation (G) Abuse of Authority: At § 87(2)(b) in Queens, Police Officer Stanley Joseph frisked § 87(2)(b)

Allegation (H) Abuse of Authority: At § 87(2)(b) in Queens, Police Officer Tristian Ozoria frisked § 87(2)(b)

Sgt. Gamez's BWC footage (**BR 25**) shows that at approximately 03:05, Sgt. Gamez lifts up § 87(2)(b) jacket, which is already unzipped, and then his sweatshirt before frisking the waistband area. Sgt. Gamez walks to the other side of § 87(2)(b) and frisks the other side of his waistband while also lifting up § 87(2)(b) jacket and sweatshirt.

PO Joseph's BWC footage (**BR 27**) shows that at 01:10, PO Joseph opens the front passenger side door and tells § 87(2)(b) to step out of the car. § 87(2)(b) places his phone inside the car and steps out. PO Ozoria and PO Joseph handcuff § 87(2)(b). At 03:10, PO Joseph asks § 87(2)(b) "Do you have anything, sir" and § 87(2)(b) says, "you can search me." PO Joseph asks, "I can search you?" and § 87(2)(b) says, "yeah, I don't got nothing." PO Joseph searches § 87(2)(b) left pockets then frisks his sweatshirt and both legs. PO Ozoria appears to frisk § 87(2)(b) right side.

PO Ozoria's BWC footage (**BR 28**) is largely consistent with PO Joseph's. At 2:47, PO Joseph asks if § 87(2)(b) has anything, and he audibly responds, "You can search me." At 02:53, PO Joseph searches § 87(2)(b) sweatshirt and pants pockets, as seen in the reflection of the vehicle window, while PO Ozoria frisks § 87(2)(b) right pants pockets and right leg.

§ 87(2)(b) (**BR 02**) did not mention being frisked or searched while next to his vehicle.

§ 87(2)(b) did not provide a statement to the investigation.

Sgt. Gamez (**BR 04**) stated that § 87(2)(b) did not mention anything about § 87(2)(b) or the other individual having any weapons when committing the robbery. Upon conducting the vehicle stop, however, Sgt. Gamez was still concerned that the individuals could be in possession of weapons due to the violent nature of the crime. As such, Sgt. Gamez frisked § 87(2)(b) waistband but did not see/feel any suspicious bulges or objects that could have been a potential weapon.

PO Ozoria (**BR 05**) stated that he and PO Joseph walked over to the front passenger side door of the vehicle and asked § 87(2)(b) and § 87(2)(b) to exit. They complied and were handcuffed. PO Ozoria then frisked one of § 87(2)(b) legs in order to check for weapons, due to the violent nature of the crime. He did not see any suspicious bulges in § 87(2)(b) pockets during the incident.

PO Joseph's (**BR 06**) statement is consistent with that of PO Ozoria. Due to the violent nature of the crime, PO Joseph was concerned that § 87(2)(b) might have possessed a weapon. PO Joseph did not have an independent recollection of asking for consent. PO Joseph frisked the left side of § 87(2)(b) body, while PO Ozoria frisked the right side. PO Joseph did not remove

determine.

Allegation (I) Abuse of Authority: At § 87(2)(b) in Queens, Police Officer George Sprague threatened § 87(2)(b) with the use of force.

§ 87(2)(b) (BR 02) stated that after he and § 87(2)(b) were handcuffed, they sat on the front steps of § 87(2)(b) house. § 87(2)(b) shouted repeatedly for his mother, who did not come outside. In response, PO Sprague told § 87(2)(b) that if he said something again, they would pick him up, stuff him into the vehicle, and bring him to the precinct.

BWC footage from PO Sprague (BR 29) shows that at approximately 02:55, § 87(2)(b) while sitting on the front steps to his house, shouts for his mother several times. PO Sprague tells him, "If the whole family comes out, we're going to have to put you in a car and figure it out at the precinct." § 87(2)(b) replies that his family will not come out.

Patrol Guide procedure 221-01 (BR 15) states that force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. When appropriate and consistent with personal safety, members of the service will use de-escalation techniques to safely gain voluntary compliance from a subject to reduce or eliminate the necessity to use force. In situations in which this is not safe and/or appropriate, MOS will use only the reasonable force necessary to gain control or custody of a subject. When determining if force is reasonable, uniformed members of service should consider the following: The nature and severity of the crime/circumstances, actions taken by the subject, duration of the action, immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders, whether the subject is actively resisting custody, whether the subject is attempting to evade arrest by flight, number of subjects in comparison to the number of MOS, Size, age, and condition of the subject in comparison to the MOS, subject's violent history, if known, presence of hostile crowd or agitators, subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.

§ 87(2)(g)

It is therefore recommended that Allegation I be closed as **Within NYPD Guidelines.**

Allegation (J) Abuse of Authority: At § 87(2)(b) in Queens, Police Officer Tristian Ozoria failed to provide § 87(2)(b) with a business card.

BWC footage from PO Ozoria (BR 28) shows that at approximately 21:43, PO Ozoria asks if § 87(2)(b) wants his name and badge number, and § 87(2)(b) tells him that his phone is dead. § 87(2)(b) asks to go into his house to get paper and a pen to write down his name and shield number, but PO Ozoria says he has to remain outside. At 22:25, PO Ozoria tells Sgt. Barreto that his business cards had not come in yet. Sgt. Barreto tells PO Ozoria to show § 87(2)(b) his badge and PO Ozoria provides his shield number verbally to § 87(2)(b) who says "okay."

§ 87(2)(b) did not provide a statement to the investigation.

PO Ozoria (BR 05) stated that he knew he was required to hand out a business card after frisking § 87(2)(b). However, he graduated from the academy in the first week of January, and his business cards did not arrive until August (after the incident). As such, he did not possess any business cards to provide to § 87(2)(b). As an alternative, PO Ozoria showed his badge to § 87(2)(b) and verbally stated his name and shield number two times.

New York City Administrative Code 14-174 (BR 11) states that officers must offer a business card to any individual with whom they conduct a law enforcement activity, including stops, questions, and searches, at the conclusion of said activity, which does not result in an arrest or summons. Business cards are required to include the officer's name, rank, shield number, and

command.

NYPD Administrative Guide 304-11 (BR 12) states that members of the service are required to provide business cards, as appropriate, at the request of members of the public. If the supply of right to know act business cards becomes depleted, members of the service must allow the member of the public ample time to write down identification information or provide a generic right to know act business card with their identification information written down legibly.

Although PO Ozoria's business cards were still in processing and he had not yet received them, he was required to provide his name, rank, shield number, and command in an alternate manner given that he had frisked him. § 87(2)(g)

It is therefore recommended that Allegation J be Substantiated.

Allegation (K) Force: At § 87(2)(b) in Queens, Police Officer Stanley Joseph used physical force against § 87(2)(b)

Allegation (L) Force: At § 87(2)(b) in Queens, Police Officer Keith Donahue used physical force against § 87(2)(b)

§ 87(2)(b) (BR 02) stated that PO Joseph began pushing him toward a marked vehicle. Upon reaching the vehicle, PO Joseph pushed him towards the back seat, which caused § 87(2)(b) to hit the back of his head against the top of the vehicle. § 87(2)(b) tried to get into the vehicle buttocks first, but his left knee was stuck outside the door frame. PO Joseph and PO Donahue slammed the vehicle door two times in an attempt to close it, hitting § 87(2)(b) left knee. § 87(2)(b) was transported to the 113th Precinct stationhouse, where he requested medical attention. He was transported by ambulance to § 87(2)(b) Hospital, where he was given X-rays, breathing bags, and pain medication.

PO Joseph prepared a medical treatment of prisoner report (BR 13) regarding the incident. The report states that § 87(2)(b) complained of pain to his knee and that he was taken to § 87(2)(b) Hospital for treatment.

BWC footage from PO Perez (BR 30) shows that at 19:00, PO Joseph attempts to slowly push § 87(2)(b) into the backseat. § 87(2)(b) says, "my neck." PO Joseph stops pushing and repeatedly tells § 87(2)(b) to get into the vehicle. § 87(2)(b) gets into the backseat.

BWC footage from PO Joseph (BR 27) shows that at 22:28, PO Joseph pushes the back door to close it after § 87(2)(b) enters the backseat, but the door appears to be unable to close on its own. PO Joseph successfully closes the door, but § 87(2)(b) says, "My knee!" PO Joseph opens the door and tells § 87(2)(b) to move back in his seat. PO Donahue moves his hand past PO Joseph and pushes the door closed. § 87(2)(b) screams and complains of pain in his knee.

BWC footage from PO Donahue (BR 31) shows that at 01:24, PO Joseph opens the rear door and tells § 87(2)(b) to sit further in. PO Donahue walks past PO Joseph and pushes the door closed. § 87(2)(b) screams, "My knee! My knee is stuck in the door!" several times. PO Donahue enters the driver's seat of the vehicle and tells § 87(2)(b) to scoot back in his seat.

PO Joseph (BR 06) stated that he escorted § 87(2)(b) into a marked vehicle, and § 87(2)(b) did not resist. PO Joseph denied seeing § 87(2)(b) hit his head or neck against the roof of the marked vehicle, and also did not have any difficulty placing him in the backseat. PO Joseph did not see any part of § 87(2)(b) body sticking out from the vehicle, nor did PO Joseph hit anything or have any difficulties when closing the door. Having viewed his BWC, PO Joseph maintained that he did not feel any kind of obstacle when closing this door.

PO Donahue (BR 14) denied seeing § 87(2)(b) his head or neck, nor did he notice any difficulties officers had in placing § 87(2)(b) inside the vehicle. Once the officers closed the door, PO Donahue heard yelling from § 87(2)(b). The officers opened the door and said something along the lines of "adjust yourself." PO Donahue closed the door and entered the driver's seat. He did not feel any kind of resistance from § 87(2)(b) when closing the door and denied slamming the door on § 87(2)(b) knee. § 87(2)(b) sat face-forward in the vehicle, facing the front

windshield. When they started driving, § 87(2)(b) stated that his knee was “stuck” in the door. However, PO Donahue explained that it would not be possible to get one’s knee stuck in the door based on the way the vehicles are designed. PO Crociata told § 87(2)(b) to adjust himself and he did not make further complaints during his transport back to the station house.

Patrol Guide procedure 221-01 (**BR 15**) states that force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. When appropriate and consistent with personal safety, members of the service will use de-escalation techniques to safely gain voluntary compliance from a subject to reduce or eliminate the necessity to use force. In situations in which this is not safe and/or appropriate, MOS will use only the reasonable force necessary to gain control or custody of a subject. When determining if force is reasonable, uniformed members of service should consider the following: The nature and severity of the crime/circumstances, actions taken by the subject, duration of the action, immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders, whether the subject is actively resisting custody, whether the subject is attempting to evade arrest by flight, number of subjects in comparison to the number of MOS, Size, age, and condition of the subject in comparison to the MOS, subject’s violent history, if known, presence of hostile crowd or agitators, subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.

§ 87(2)(g)

It is therefore recommended that **Allegation K** be closed as **Within NYPD Guidelines**.

BWC footage does not show if PO Donahue hit § 87(2)(b) knee when he closed the vehicle door, § 87(2)(g)

It is recommended that **Allegation L** be closed as **Unable to Determine**.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 17).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 18).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 36).
- PO Joseph has been a member of service for one year and this is the first CCRB complaint to which he has been a subject.
- PO Ozoria has been a member of service for one year and this is the first CCRB complaint to which he has been a subject.
- PO Donahue has been a member of service for 16 years and has been a subject in seven CCRB complaints and 17 allegations, none of which have been substantiated. § 87(2)(g)
- Sgt. Gamez has been a member of service for 14 years and has been a subject in four CCRB complaints and six allegations, of which three have been substantiated (BR 19):
 - Case #201909568 involved substantiated allegations of a nonlethal restraining device, verbal discourtesy, and offensive language regarding gender. The Board recommended charges and the NYPD imposed a forfeiture of 20 vacation days.

§ 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- On April 14, 2025, a FOIL request was submitted to the Office of the New York City Comptroller. Results will be attached upon receipt (BR 20).

§ 87(2)(b) [§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 10

Investigator: Justin Huang

Signature

Investigator Justin Huang

Print Title & Name

05/12/2025

Date

CCRB Case # 202403115

Squad Leader:	Maura R. Roche	IM Maura R. Roche	05/15/2025
	Signature	Print Title & Name	Date

Reviewer:			
	Signature	Print Title & Name	Date